

HOUSE No. 2028

The Commonwealth of Massachusetts

PRESENTED BY:

Andres X. Vargas

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act improving juvenile justice data collection.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Andres X. Vargas</i>	<i>3rd Essex</i>	<i>1/16/2025</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>6/17/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>6/17/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/17/2025</i>
<i>Christopher J. Worrell</i>	<i>5th Suffolk</i>	<i>6/23/2025</i>
<i>John Francis Moran</i>	<i>9th Suffolk</i>	<i>7/15/2025</i>
<i>Russell E. Holmes</i>	<i>6th Suffolk</i>	<i>11/19/2025</i>

HOUSE No. 2028

By Representative Vargas of Haverhill, a petition (accompanied by bill, House, No. 2028) of Andres X. Vargas relative to improving juvenile justice data collection. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1802 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act improving juvenile justice data collection.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The purpose of these provisions is to ensure that the Commonwealth
2 establishes systems to collect accurate, consistent, and comprehensive data on juveniles' contacts
3 with officials in the law enforcement and juvenile justice systems.

4 SECTION 2. Section 12(a) of Chapter 18C of the General Laws is hereby amended by
5 inserting the words "or any law protecting the confidentiality of juvenile justice records and
6 information" after "20K of chapter 233"

7 SECTION 3. Chapter 18C of the General Laws is hereby further amended by inserting
8 after section 14, the following section:

9 Section 15. Collection and Reporting of Juvenile Justice Data

(a)The child advocate shall report statistical data on the juvenile justice system annually by December 31st to the governor, the house and senate chairs of the joint committee on the judiciary, the house and senate chairs of the joint committee on public safety and homeland security, the house and senate chairs of the committee on children, families and persons with disabilities, the chief justice of the supreme judicial court and the chief justice of the trial court. The report, which shall be made public pursuant to reporting recommendations of the Juvenile Justice Policy and Data Board as required by section 89 of chapter 119, shall include statistics on the utilization of the juvenile justice system at various process points as well as information on decisions made at justice system decision points impacting juveniles, as described in Section 89 and Section 90 of Chapter 119 of the General Laws.

(b)The child advocate shall request data from relevant Offices and Departments holding data necessary to complete the aforementioned report at least annually and may request data be provided on a quarterly basis.

(c)The Child Advocate shall issue guidance, in consultation with the Juvenile Justice Policy and Data Board, for the administration and enforcement of this section, including guidance establishing (1) schedules for the submission, transmission and publication of the data (2) the format and form that the aforementioned data from Offices and Departments shall take, including any requirements that data should be available for analysis or disaggregation, and the format that transmission of the data shall take (3) the categories and types of data on juvenile interactions with the justice system to be submitted by each agency. The child advocate may request, and all Offices and Departments subject to this law shall provide, individual-level data to facilitate analysis, provided that the child advocate shall be bound by any limitations on

the use or release of such individual-level data imposed by law upon the party furnishing such information as described in Section 12 of this chapter.

(d)The guidance required by subsection (c) shall, at minimum, require data be provided in such a way as to allow cross tabulated analysis by demographic subgroups including, at a minimum, age at the time of offense, sex/gender, gender identity and expression, racial or ethnicity category, sexual orientation, charge type and level, geographic location such as county or court location, involvement with the Department of Children and Families and any combination thereof. The Child Advocate shall provide guidance about the manner in which demographic data is designated and collected, with consideration of the juveniles' self-reporting of such categories based on data reporting standards issued by the Juvenile Justice Policy and Data Board as required by section 89 of chapter 119.

SECTION 4. Section 89 of chapter 119 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after the definition of "criminal justice agency" the following paragraph:-

"Gender identity" shall be defined pursuant to clause 59 of section 7 of chapter 4 of the General Laws

SECTION 5. Section 89 of said chapter 119, as so appearing, is hereby further amended by inserting after the definition of "racial or ethnic category" the following paragraph:-

"Sexual orientation", having an orientation for or being identified as having an orientation, for heterosexuality, bisexuality, or homosexuality.

SECTION 6. Subsection (b) of section 89 of said chapter 119 of the General Laws, as so appearing, is hereby further amended by striking the words “mental health care system”, and inserting in place thereof the words “mental health care and child welfare systems”

SECTION 7. Chapter 119 of the General Laws, as appearing in section 80 of chapter 69 of the acts of 2018, is hereby amended by inserting after section 89 the following section:

Section 90. Collection and Reporting of Juvenile Justice Data

(a) As used in this section the following words shall, unless the context clearly requires otherwise, have the following meaning:—

(1) “Justice system decision point” shall refer to set points in the justice process where a criminal justice agency makes a decision which results in a change in a juvenile’s status, including, but not limited to: decisions to refer a juvenile to a diversion program; to arrest a juvenile or issue a court summons; to hold a juvenile in custody prior to arraignment; to file a delinquency or criminal complaint; to advance a delinquency or criminal complaint; to proceed with a prosecution; to make a finding as to legal competency; to issue an indictment; to arraign a juvenile; to dismiss a case; to hold a hearing regarding dangerousness; to detain a juvenile without bail; to transfer a case to district or superior Court; to impose bail; to impose pretrial release conditions; to place a juvenile on an electronic monitoring device, either as a condition of pretrial release, as a condition of probation after disposition of a case to revoke bail; to order a juvenile to be held in detention; to continue a case without a finding; to adjudicate a juvenile; to issue a disposition; to place a juvenile on probation; to issue probation conditions; to commit a juvenile to the Department of Youth Services; to sentence a juvenile to serve time in an adult custodial facility; to refer a juvenile to a court for a probation violation; to revoke a juvenile’s

probation; to confine a juvenile; to change a juvenile's placement type in a custodial facility; to issue a grant of conditional liberty; to grant or revoke a grant of conditional liberty; to grant parole after an initial parole hearing; to grant parole after a subsequent review hearing; to revoke parole; to certify or deny sealing or expungement petition, pursuant to sections 100B, 100F and 100G of Chapter 276 of the General Laws.

(2) "Juvenile" shall be defined pursuant to Section 89 of Chapter 119 of the General Laws.

(b) All criminal justice agencies, as defined by Section 89 of Chapter 119 of the General Laws, shall comply with data requests from the child advocate pursuant to section 15 of Chapter 18C regarding decisions made impacting juveniles at justice system decision points. The attorney general may enforce the provisions of this paragraph by a suit in equity commenced in the superior court.

(c) The department of state police, municipal police departments, Massachusetts Bay Transportation Authority police, any police or law enforcement officer stationed at or affiliated with a local education authority, and any contractor, vendor or service-provider working with such police including any alternative lock-up programs, shall collect and provide the necessary information to comply with the data request from the child advocate pursuant to Section 15 of Chapter 18C for each juvenile subjected to the following contacts for each fiscal year, provided on a quarterly basis if requested by the child advocate:

(1) referral to and/or use of diversion programming; and

(2) custodial arrests and issuance of court summons

(d) Clerk magistrates shall collect and provide the necessary information to comply with the data request from the child advocate pursuant to Section 15 of Chapter 18C for each juvenile subjected to the following contacts for each fiscal year, provided on a quarterly basis if requested by the child advocate:

(1) application for complaint filed;

(2) finding of probable cause;

(3) diversion from further court proceedings, including referral to and/or use of diversion programming;

(4) complaint issued;

(5) appeal to judge of the finding by the clerk magistrate; and

(6) complaint issued after appeal.

(e) The district attorneys shall collect and provide the necessary information to comply with the data request from the child advocate pursuant to Section 15 of Chapter 18C for each juvenile subjected to the following contacts for each fiscal year, provided on a quarterly basis if requested by the child advocate:

(1) decision not to proceed with prosecution, including but not limited to entering a nolle prosequi or moving to dismiss a case;

(2) diversion from further court proceedings, including referral to and/or use of diversion programming;

114 (3) decision to proceed with dangerousness hearing pursuant to section 58A of chapter
115 276

116 (4) indictment as a youthful offender;

117 (5) dismissal of indictment/dismissal of indictment in exchange for other action; and

118 (6) prosecution in criminal court under section 74 of chapter 119 of the General Laws.

119 (f) The juvenile court department shall collect and provide the necessary information to
120 comply with the data request from the child advocate pursuant to Section 15 of Chapter 18C for
121 each juvenile subjected to the following contacts for each fiscal year, provided on a quarterly
122 basis if requested by the child advocate:

123 (1) arraignment as a delinquent

124 (2) arraignment as a youthful offender;

125 (3) diversion from further court proceedings, including referral to and/or use of diversion
126 programming pursuant to section 54A of chapter 119 of the General Laws;

127 (4) court hearing on dangerousness pursuant to section 58A of chapter 276 of the General
128 Laws;

129 (5) competency hearing;

130 (6) transfer of case to adult criminal court under section 72A of chapter 119 of the
131 General Laws;

132 (7) imposition of bail or order to hold without bail;

133 (8) imposition of pretrial release conditions, including pre-trial probation pursuant to
134 section 87 of chapter 276 of the General Laws;

135 (9) bail revocation hearings;

136 (10) cases which are continued without a finding pursuant to section 18 of chapter 278
137 and to section 58 of chapter 119 of the General Laws;

138 (11) dismissal of charges;

139 (12) adjudication as a delinquent;

140 (13) adjudication as a youthful offender;

141 (14) imposition of an adult sentence pursuant to section 58 of chapter 119 of the General
142 Laws;

143 (15) disposition, including but not limited to:

144 i. sentence to probation;

145 ii. commitment to the department of youth services pursuant to section 58 of chapter 119
146 of the General Laws;

147 (16) commitment to the department of youth services pursuant to section 2 of chapter 279
148 of the General Laws that are suspended;

149 (17) juvenile surrendered on criminal and non-criminal violations of probation;

150 (18) commitments to department of youth services following a probation violation; and

151 (19) revocation of a continuation without a finding pursuant to pursuant to section 18 of
152 chapter 278 and to section 58 of chapter 119 of the General Laws;

153 (g) The office of the commissioner of probation shall collect and provide the necessary
154 information to comply with the data request from the child advocate pursuant to Section 15 of
155 Chapter 18C for each juvenile subjected to the following contacts for each fiscal year, provided
156 on a quarterly basis if requested by the child advocate:

157 (1) referral to and/or use of diversion programming;

158 (2) supervision of pre-trial probation;

159 (3) supervision of continuances without a finding;

160 (4) supervision of juvenile on probation; and

161 (5) referral to the court for a probation violation.

162 (6) number of petitions and number of allowances and denials on petitions for sealing,
163 pursuant to section 100B of Chapter 276 of the General Laws;

164 (7) number of petitions and number of allowances and denials of petitions for
165 expungement, pursuant to sections 100F, 100G and 100H of Chapter 276 of the General Laws;

166 (8) number of petitions and number of allowances and denials of petitions for
167 expungement, pursuant to section 100K of Chapter 276 of the General Laws;

168 (9) number of petitions and number of allowances and denials on petitions for sealing,
169 pursuant to section 100A of Chapter 276 of the General Laws;

(10) number of juveniles on electronic monitoring, disaggregated by race, ethnicity, gender, county, court, length of time on GPS

(h) The department of youth services and any contractor, vendor or service provider working with said department including alternative lock-up programs shall collect and provide the necessary information to comply with the data request from the child advocate pursuant to Section 15 of Chapter 18C for each juvenile subjected to the following contacts for each fiscal year, provided on a quarterly basis if requested by the child advocate:

(1) pre-arraignment detention;

(2) pre-trial detention;

(3) commitment;

(4) placement type, including, but not limited to, security level

(5) notice of revocation of grants of conditional liberty;

(6) hearing on grants of conditional liberty; and

(7) revocation of grants of conditional liberty for violation of conditions of liberty; and

(8) voluntary extensions of commitments with the department of youth services.

(i) The district and superior court shall collect and provide the necessary information to comply with the data request from the child advocate pursuant to Section 15 of Chapter 18C for each juvenile subjected to the following contacts for each fiscal year, provided on a quarterly basis if requested by the child advocate:

189 (1) arraignment for murder in the first degree and murder in the second degree; and
190 (2) convictions.

191 (j) The department of correction and each sheriff's department shall collect and provide
192 the necessary information to comply with the data request from the child advocate pursuant to
193 Section 15 of Chapter 18C for each juvenile subjected to the following contacts for each fiscal
194 year, provided on a quarterly basis if requested by the child advocate:

195 (1) pre-arraignment detention;
196 (2) pre-trial detention;
197 (3) post-disposition confinement of youthful offenders; and
198 (4) post-conviction confinement for murder.

199 (k) The parole board shall collect and provide the necessary information to comply with
200 the data request from the child advocate pursuant to Section 15 of Chapter 18C for each juvenile
201 subjected to the following contacts for each fiscal year, provided on a quarterly basis if requested
202 by the child advocate:

203 (1) grant of parole after an initial parole hearing;
204 (2) grant of parole after a subsequent review hearing;
205 (3) supervision of parole; and
206 (4) revocation of parole.

207 (l) The Executive Office of Public Safety and Security shall be responsible for
208 assembling the data requested by the child advocate pursuant to Section 15 of Chapter 18C
209 collected by the below offices and departments. Said data shall be provided to the Office of the
210 Child Advocate no later than 75 days after the end of the fiscal year or quarter if the child
211 advocate requests data on a quarterly basis.

- 212 1. The Commissioner of the Department of Correction
- 213 2. Sheriffs of each County;
- 214 3. The Parole Board;
- 215 4. The Department of the State Police;
- 216 5. Municipal police departments;
- 217 6. The Massachusetts Bay Transportation Authority Police;
- 218 7. School based police, including those from any local education authority;
- 219 8. Alternative Lock-up Programs; and
- 220 9. any other contractor, vendor or service provider working with school based or other
221 police officers.

222 (m) The Massachusetts District Attorneys Association shall be responsible of assembling
223 data requested by the child advocate pursuant to Section 15 of Chapter 18C collected by District
224 Attorney's Offices. Said data shall be provided to the Office of the Child Advocate no later than
225 75 days after the end of the fiscal year or quarter if the child advocate requests data on a
226 quarterly basis.

(n) The Court Administrator shall be responsible for assembling data requested by the child advocate pursuant to Section 15 of Chapter 18C collected by judicial officers and court personnel including the Commissioner of Probation, judicial officers and court personnel, and the Executive Director of Community Correction. Said data shall be provided to the Office of the Child Advocate no later than 75 days after the end of the fiscal year or quarter if the child advocate requests data on a quarterly basis.

(o) The Department of Youth Services shall be responsible for assembling data requested by the child advocate pursuant to Section 15 of Chapter 18C collect by all department personnel, contractors or vendors working with the Department. Said data shall be provided to the Office of the Child Advocate no later than 75 days after the end of the fiscal year or quarter if the child advocate requests data on a quarterly basis.

(p) Notwithstanding any law to the contrary, the child advocate may request, and all Offices and Departments subject to this law shall provide upon request, individual level data to facilitate analysis by the Office of the Child Advocate, provided that the child advocate shall be bound by any limitations on the use or release of such individual-level data imposed by law upon the party furnishing such information as described in Section 12 of Chapter 18C. Any individual data described or acquired under the provisions of this section shall be used only for statistical purposes and may not be disseminated if it contains data that reveal the identity of an individual who had contact with the juvenile justice system within the meaning of this chapter.

(q) If any Offices or Departments subject to this law are unable to fulfill the data request made by the child advocate, in whole or in part, they shall submit to the child advocate a report detailing what data could not be provided, stating clearly the reason data could not be provided,

249 and clearly documenting the efforts the Office or Department has made and will make to ensure
250 data can be provided in the future. If the data cannot be provided due to budgetary constraints,
251 the Office or Department shall provide a budget detailing the additional funding required to
252 fulfill the data request. These reports on data availability shall be included in the annual juvenile
253 justice data report of the child advocate pursuant to Section 15 of Chapter 18C and shall be a
254 matter of public record.